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CHAPTER XVII

OF OFFENCES AGAINST PROPERTY

Of theft

Theft.

303. (*1*) Whoever, intending to take dishonestly any movable property out of the possession of any person without that person's consent, moves that property in order to such taking, is said to commit theft.

Explanation 1.—A thing so long as it is attached to the earth, not being movable property, is not the subject of theft; but it becomes capable of being the subject of theft as soon as it is severed from the earth.

Explanation 2.—A moving effected by the same act which affects the severance may be a theft.

Section 303, Bharatiya Nyaya Sanhita, 2023

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India's criminal code defines theft as dishonestly taking **movable** property from someone's possession without consent. Explanation 1 spells out the limit: a thing attached to the earth 'is not the subject of theft'. Under this section, land cannot be stolen.